Department of Treasury and Finance

Tasmanian Government

# Notes on Clauses

**Crown Lands (Treasury Complex) Bill 2026**

Clause 1 Short title

Clause 2 This Act is to commence on receiving Royal Assent.

Clause 3 This clause establishes definitions for terms used in the Act.

Clause 4 Defines the Treasury Complex site, referring to the Central Plan Register Plan 11660.

Clause 5 Confers that the land appropriate to the Treasury Complex site is vested in the Crown on the commencement of this Act.

Clause 6 Confers that the Treasury Complex site is taken to be:

- unalienated (ie unburdened by any other interest) Crown land (until the land is disposed of); and
- freed and discharged from all limitations with all public and private rights being extinguished (other than any rights that are to be preserved, ie access rights to infrastructure by utility providers).

Clause 7 Confers that the Crown may create title under the *Land Titles Act 1980*.

Clause 8 Provides for easements to be created under the *Land Titles Act 1980*.

Clause 9 Confers that positive and negative covenants may be noted on any future title for the Treasury Complex site. Examples of both types of covenants are provided below:

- a positive covenant may be required to ensure that those areas to be accessible for public use remain for that use and not be redeveloped solely for commercial purposes; and
- a negative covenant may be required to prevent any uses of the Treasury Complex site that may be deemed undesirable or inappropriate.

Clause 10 Provides for the revocation of any reserves or set aside land contained in the Treasury Complex site.

Clause 11 Advises that no compensation is payable by the Crown due to any action carried out or omitted, should any unintended consequences occur due to this Act.

Clause 12 Ensures that any powers granted under this Act are in addition to those previously granted under any other Act.

Clause 13 Provides for regulations to be made for the purposes of this Act.

Clause 14 Advises that the Treasurer administers this Act and the department responsible to the Treasurer in relation to that administration is the Department of Treasury and Finance.